

Bail Amendment Bill 2023

Introduction Print

EXPLANATORY MEMORANDUM

General

The Bail Amendment Bill 2023 amends the **Bail Act 1977** and makes consequential amendments to several other Acts to make changes to the tests applied and what bail decision makers must take into account in making determinations in relation to bail and to repeal 2 offences. The amendments address remand of those accused of relatively low-level offending and the particular impacts of the **Bail Act 1977** on vulnerable cohorts including Aboriginal people and women.

Clause Notes

Part 1—Preliminary

Clause 1 provides that the purpose of the Bill is to amend the **Bail Act 1977**—

- to make changes to the tests that are to be applied in making determinations in relation to bail, including by—removing certain offences from Schedule 2 offences to which a reverse onus bail test will apply; providing that bail is not to be refused in respect of certain offences, subject to exceptions; and providing that reverse onus tests apply to children in fewer circumstances; and
- to make changes in relation to what bail decision makers must take into account, including by reforming the provisions about what a bail decision maker must take into account when making a determination that relates to an Aboriginal person or a child; and

- to repeal the offence of contravening certain conditions and the offence of committing an indictable offence whilst on bail; and
- to make amendments to clarify, modernise and otherwise improve the Act.

Clause 2 is the commencement provision.

Subclause (1) provides that the Bill comes into operation on a day or days to be proclaimed, subject to the default commencement date provided in subclause (2).

Subclause (2) provides that if a provision of the Bill does not come into operation before 25 March 2024, approximately 7 months after the Bill's introduction into Parliament, it comes into operation on the day.

Clause 3 provides that the **Bail Act 1977** will be called the Principal Act throughout the Bill.

Part 2—Changes to tests to be applied by bail decision makers

Division 1—Certain offences no longer to be Schedule 2 offences

Clause 4 substitutes a reference to "certain Schedule 2 offences" with "Schedule 2 offences" in the note at the foot of section 10(5) of the Principal Act. The note currently states that sections 13, 13AA and 13A specify circumstances in which only a court may grant bail, including relating to persons accused of certain Schedule 2 offences who are already on 2 or more undertakings of bail in relation to other indictable offences. This note currently refers to "certain" Schedule 2 offences because sections 13 and 13A include exceptions in relation to an offence that is referred to in item 1 or 30 of Schedule 2, or offences of conspiracy to commit, incitement to commit, or attempting to commit such an offence. All offences subject to this exception will no longer be Schedule 2 offences due to the repeal of items 1 and 30 of Schedule 2 in clause 8(2). There is therefore no longer any Schedule 2 offence to which sections 13, 13AA and 13A will not apply, so the caveat of "certain" is no longer required.

Clause 5 substitutes a reference to "certain Schedule 2 offences" with "Schedule 2 offences" in the note at the foot of section 10A(5) of the Principal Act. This amendment is made for the same reason as the amendment in clause 4.

Clause 6 amends section 13 of the Principal Act, which sets out certain matters in respect of which only a court may grant bail.

Subclause (1) substitutes section 13(3) of the Principal Act. It provides that only a court may grant bail to a person charged with a Schedule 1 offence or (subject to section 13(4)) on any other decision to which, under section 4AA or section 4AAB, the step 1—exceptional circumstances test would apply.

New section 13(3)(a) is necessary because it is intended to retain the restriction that only a court may grant bail to a child accused of any Schedule 1 offence, despite the reduced list of offences to which the exceptional circumstances test will apply for children. The application of this limitation on who may grant bail to a child therefore cannot be described by reference to the reduced list of Schedule 1 offences to which the step 1—exceptional circumstances test applies for a child accused, which are now set out separately in new section 4AAB(1). It is instead necessary to refer to the offences themselves, as new section 13(3)(a) does.

New section 13(3)(b) is necessary because while the current section applies the restriction on who may grant bail by reference to application of the step 1—exceptional circumstances test under section 4AA(1) or (2), these provisions no longer govern the application of the step 1—exceptional circumstances test to children. The application of the step 1—exceptional circumstances test to children is now dealt with by new section 4AAB. Accordingly, new section 13(3) applies the limitation on who may grant bail to any decision to which the step 1—exceptional circumstances test applies under either section 4AA or new section 4AAB.

Subclause (2) amends section 13(4) of the Principal Act to repeal paragraph (b). Current section 13(4) currently excludes certain accused from the provision that only a court may grant bail under section 13(3).

The amendment is necessary because section 13(4)(b) is made redundant by the repeal of items 1 and 30 of Schedule 2 in clause 8(2). Section 13(4)(b) currently operates to allow any bail decision maker to grant bail notwithstanding section 13(3) where the accused is only subject to the exceptional circumstances test because they are charged with an offence that is referred to in items 1 or 30 of Schedule 2, or an offence of conspiracy to commit, incitement to commit, or attempting to commit such an offence.

- Clause 7 amends section 13A of the Principal Act by omitting "relevant" from section 13A(1). Section 13A provides that only a court may grant bail to a person (other than a child, vulnerable adult or an Aboriginal person) who is accused of a relevant Schedule 2 offence and who is already on 2 or more undertakings of bail in relation to other indictable offences.

Subclause (2) repeals section 13A(3) which defines the term **relevant Schedule 2 offence** for the purposes of section 13A. The definition was introduced to exclude from this limitation an accused who is only charged with a Schedule 2 offence set out in items 1 or 30 of Schedule 2, or charged with an offence of conspiracy to commit, incitement to commit or attempting to commit an offence set out in item 1 or 30 of Schedule 2. Due to the repeal of items 1 and 30 of Schedule 2 in clause 8(2), this exception is redundant, and as a result there is no need for a separate defined term **relevant Schedule 2 offence**. Accordingly, the amendments made by subclauses (1) and (2) amend section 13A to no longer use that defined term.

- Clause 8 amends Schedule 2 to the Principal Act.

Subclause (1) substitutes the note below the heading of Schedule 2 for a new note that sets out the provisions of the Act that determine when a reverse-onus test applies for an adult or a child.

Subclause (2) repeals item 1 (an indictable offence committed in certain circumstances) and item 30 (an offence against the Principal Act) from Schedule 2. The practical effect of this is to ensure that such offending is not a Schedule 2 offence for the purposes of considering which bail test applies.

Division 2—Offences in respect of which bail must not be refused

Clause 9 inserts new section 4AAA into the Principal Act, regarding offences in respect of which bail must not be refused.

New section 4AAA(1) prohibits a bail decision maker from refusing bail to a person provided the person is only accused of offences against the **Summary Offences Act 1966**, subject to certain exceptions. This prohibition applies despite anything else to the contrary in any other provision of the Principal Act.

New section 4AAA(1)(a) provides that the prohibition on remand will not apply if the person is accused either of any offence under the **Summary Offences Act 1966** which is listed in new Schedule 3, or of any other offence. The offences listed in Schedule 3 include serious, violent or sexual offending.

New section 4AAA(1)(b) provides that the prohibition on remand will not apply if the person has a terrorism record.

New section 4AAA(1)(c) provides that if the bail decision maker is a court, the prohibition on remand will not apply if an exception under new section 4AAA(2) applies.

New section 4AAA(2) provides 2 exceptions to the prohibition on remand where the bail decision maker is a court, for the purposes of new section 4AAA(1)(c). Firstly, the prohibition will not apply if the court has determined under section 8AA that there is a risk that the accused will commit a terrorism or foreign incursion offence. Secondly, the prohibition will not apply if the person was previously granted bail for any of the offences of which the person is accused, and that bail was subsequently revoked. This exception only applies to the specific charges in respect of which the bail determination is being made, and does not apply where the person has previously been charged with the same offence but in relation to separate conduct.

New section 4AAA(3) provides that a reference to a bail decision maker considering, deciding or determining whether to grant bail (however described) includes a reference to a bail decision maker who is prohibited from refusing bail by new section 4AAA(1). This means that bail decisions makers continue to apply other relevant provisions of the Principal Act to the extent possible, even if bail must not be refused. This is necessary because the Principal Act uses different language such as "considering, deciding or determining" to describe when a bail decision maker

is making a decision in relation to bail. The intent of this provision is to ensure that, however described, those provisions apply despite the prohibition on remand.

The note at the bottom of this subsection provides section 5AAAA(1) as an example. Even where a person cannot be remanded due to the remand prohibition in new section 4AAA(1), the bail decision maker must still make inquiries of the prosecutor as to whether certain instruments are in force against the person, as (for example) this may inform any decision to impose conduct conditions on the grant of bail under section 5AAA.

New section 4AAA(4) provides that the remand prohibition does not limit the power of court to revoke bail. The provision is intended to ensure there are potential consequences for any failure to comply with a bail undertaking or condition of the grant of bail.

Clause 10 amends section 12B(2) and inserts new section 12B(2A), (2B) and (2C) into the Principal Act. Section 12B generally sets out what a court may do if a person subject to a summons to answer to a charge for an offence is before a court (other than the Children's Court) on a hearing in the criminal proceeding relating to the charge, and that hearing is to be adjourned. This section currently allows the court to bail or remand the person (subject to certain limitations) notwithstanding that the person was subject to a summons when brought before the court. New section 12B(2A) is necessary to ensure that the options available to a court are amended to be consistent with the new prohibition on remand in new section 4AAA(1).

New section 12B(2A) and (2B) provide, in effect, that the court cannot refuse bail to the person in circumstances where new section 4AAA(1) would prevent the court from refusing bail.

New section 12B(2C) provides that if the person cannot be refused bail under subsection (2A), the court must grant the person bail or allow the person to go at large. This removes one of the 3 options that would current be available to the court in such circumstances, namely refusal of bail, where subsection (2A) applies.

- Clause 11 inserts a new Schedule 3 to the Principal Act which lists the offences within the **Summary Offences Act 1966** for which a bail decision maker may refuse bail, despite the prohibition on remand in new section 4AAA(1).

Division 3—Changes to unacceptable risk test

- Clause 12 substitutes the note in section 4AA of the Principal Act for a new note that summarises when, under new section 4D of the Principal Act, the unacceptable risk test applies as a second step in a two-step bail test, and when it applies as the sole bail test.
- Clause 13 substitutes section 4D of the Principal Act to provide when a bail decision maker must apply the unacceptable risk test. New subsection 4D(a) provides that the bail decision maker must apply the step 2—unacceptable risk test upon discharge of either the step 1—exceptional circumstances or step 1—show compelling reason test by the accused. New subsection 4D(b) directs the bail decision maker to apply the step 2—unacceptable risk test as the sole bail test where no step 1 test applies.

This substitution effectively repeals section 4D(2) and (3) of the Principal Act. These provisions replicated the instructions in section 4E(1) and (2) of the Principal Act, which provide that the decision maker must refuse bail if they are satisfied that a risk of the kind mentioned in section 4E(1)(a) exists, and, the prosecutor bears the onus of satisfying the decision maker as to the existence and unacceptability of that risk. Section 4D(2) and (3) are therefore repealed to remove unnecessary duplication and simplify the Principal Act.

- Clause 14 substitutes section 4E(1)(a)(i) of the Principal Act to provide that a bail decision maker must refuse bail if the accused poses an unacceptable risk of endangering the safety or welfare of any other person, whether by committing an offence that has that effect or by any other means. This does not require that there be a risk to a particular individual—it may be a risk to any person in the community.

Subclause (2) repeals section 4E(1)(a)(ii) of the Principal Act. This has the effect of excluding from the unacceptable risk test a risk of further offending while on bail that does not endanger the safety or welfare of any other person.

Together, these amendments prevent a person from being remanded only due to being found to pose an unacceptable risk of committing an offence while on bail. The amendment to section 4E(1)(a)(i) instead means that in order to remand the person, the person must be found to pose an unacceptable risk of endangering the safety or welfare of any other person either through the commission of an offence or by any other means.

"Endangering the safety or welfare" of another person does not require that the accused person be found to pose an unacceptable risk of committing a violent or sexual offence. For example, a bail decision maker may be satisfied that a risk of property-based offending meets the unacceptable risk threshold if the commission of such an offence would endanger the safety or welfare of any person, whether that is a particular individual, or any person in the community.

The amendment also means that the accused must pose a risk of endangering the safety or welfare of a person other than themselves for this limb of the unacceptable risk test to be satisfied.

Clause 15 substitutes section 5AAA(1)(a) of the Principal Act to replicate the unacceptable risk test in new section 4E(1)(a).

Subclause (2) repeals section 5AAA(1)(b). The repeal of this provision corresponds with the repeal of subsection 4E(1)(a)(ii) of the Principal Act.

The purpose of the conduct conditions regime in section 5AAA is to allow bail decision makers to impose conditions to reduce the likelihood that the accused may do any of the things mentioned in section 4E(1)(a) of the Principal Act. The intended effect of these amendments is to align the conduct condition regime with the unacceptable risk test. That is, to allow the decision maker, upon identification of any of the risks mentioned in section 4E(1)(a), to consider releasing the accused on bail if the imposition of conditions would ameliorate one of those risks to an acceptable level.

Division 4—Bail tests that apply to children

Clause 16 inserts the definition of the term **adult** into section 3 of the Principal Act, to mean a person who is not a child. This is necessary because the Principal Act will now apply reverse onus bail tests differently according to whether the accused is a child or adult. Clause 17 introduces the term **adult** into section 4AA of the Principal Act further to this distinction, while new section 4AAB applies where the accused is a child.

Clause 17 amends section 4AA of the Principal Act to make clear the provision applies only to adults. Previously, section 4AA of the Principal Act applied to both adults and children. Subclause (1) inserts the term "for adults" into the heading of section 4AA, to specify that this section is only applicable to decisions of whether to grant bail to adults.

The clause also substitutes all references to "the person" or "a person accused" within section 4AA of the Principal Act with "the adult", or "an adult who is accused" as applicable.

Clause 18 inserts new section 4AAB into the Principal Act, which sets out the bail tests that apply to decisions of whether to grant bail to children. This section establishes a differentiated bail test for children.

New section 4AAB(1) provides that the step 1—exceptional circumstances test applies to a decision of whether to grant bail to a child accused of murder, attempted murder, or an offence against section 4B(1) or 21W of the **Terrorism (Community Protection) Act 2003**. This is intended to ensure that all homicide-related and terrorism offences currently contained within Schedule 1 of the Principal Act continue to attract the exceptional circumstances test where the accused is a child.

New section 4AAB(2) provides that the step 1—exceptional circumstances test applies to a decision of whether to grant bail to a child who is accused of any other Schedule 1, or any Schedule 2 offence, if the child has a terrorism record or poses a terrorism risk. This section is intended to preserve the bail tests applicable to any accused who has a terrorism record or poses a terrorism risk, as they currently operate under the Principal Act.

New section 4AAB(3) provides that the step 1—show compelling reason test applies to a decision of whether to grant bail to a child accused of specified homicide offences. This is intended to ensure that all homicide offences currently contained within Schedule 2 of the Principal Act continue to attract the show compelling reason test where the accused is a child.

New section 4AAB(4) provides that the step 1—show compelling reason test applies to a decision of whether to grant bail to a child accused of an offence that is neither a Schedule 1 or 2 offence, if the child has a terrorism record or poses a terrorism risk. This section is intended to preserve the bail tests applicable to any accused who has a terrorism record or poses a terrorism risk as they currently operate under the Principal Act.

The clause inserts a note at the end of new section 4AAB, to confirm that the unacceptable risk test applies to a child being considered for bail even where a reverse-onus bail test does not apply.

- Clause 19 substitutes references to section 4AA in section 4A(1) of the Principal Act with references to both sections 4AA and 4AAB. This is necessary to ensure that section 4A (exceptional circumstances test) continues to apply to children where relevant.
- Clause 20 substitutes references to section 4AA in section 4C(1) of the Principal Act with references to both sections 4AA and 4AAB. This is necessary to ensure that section 4C (show compelling reason test) continues to apply to children where relevant.
- Clause 21 substitutes references to section 4AA in section 8AA(1)(b) of the Principal Act with references to both sections 4AA and 4AAB. This is necessary to ensure that section 8AA (court to make preliminary determination if terrorism risk alleged) continues to not apply where a child has a terrorism record.

The clause also substitutes references to section 4AA in note 2 at the foot of section 8AA(1) of the Principal Act, with references to both sections 4AA and 4AAB. This is intended to make clear the relevant provisions for both adult and children for when the exceptional circumstances test applies.

The clause also substitutes references to section 4AA in the note at the foot of section 8AA(2) of the Principal Act, with references to both sections 4AA and 4AAB. This is intended to make clear what the relevant bail tests are for both adults and children, if the accused poses a terrorism risk.

- Clause 22 inserts a reference to section 4AAB in section 12A(1) of the Principal Act. This is necessary to ensure that section 12A (when bail decision maker must state reasons for granting bail) continues to apply to children.
- Clause 23 omits the words "a child" from section 13(4)(a) of the Principal Act. This section indicates that only a court may grant bail to a person who is subject to the exceptional circumstances test by operation of section 4AA(2)(c) or (d). Section 13(4)(a) currently expressly excludes children from the operation of this provision. Clause 17 amends the Principal Act so that section 4AA no longer applies to children, and new section 4AAB does not continue the application of the step 1—exceptional circumstances test to children in the circumstances currently set out in section 4AA(2)(c) or (d). As a result, expressly excluding "a child" is no longer necessary. Section 13 will continue to have the same effect as it does currently under the Principal Act.
- Clause 24 substitutes the notes below the heading to Schedule 1 to the Principal Act that direct the reader to section 4AA, with new notes that refer the bail decision maker to both sections 4AA and 4AAB, the relevant provisions for both adults and children that provide when the exceptional circumstances test applies. The structure and wording of the notes have been amended to promote clarity.

Division 5—Preservation of certain aspects of items repealed from Schedule 2

- Clause 25 inserts new section 4AA(2)(c)(iiia) and (iiib) into the Principal Act to provide for additional circumstances where the exceptional circumstances test applies to a decision of whether to grant bail to a person accused of a Schedule 2 offence.

New section 4AA(2)(c)(iia) provides that the exceptional circumstances test will apply to a decision of whether to grant bail to an adult accused of a Schedule 2 offence if the offence is alleged to have been committed while the adult was on remand for a Schedule 1 offence or a Schedule 2 offence.

New section 4AA(2)(c)(iib) provides that the exceptional circumstances test will apply to a decision of whether to grant bail to an adult accused of a Schedule 2 offence if the offence is alleged to have been committed while the adult was at large awaiting sentence for a Schedule 1 offence or a Schedule 2 offence. A note is included after section 4AA(2)(c)(iib) referring to new subsection (5). New subsection (5) is inserted by clause 26(2) and provides further clarification as to the meaning of "at large awaiting sentence".

These new provisions will ensure that those who commit serious offences while on remand or at large awaiting sentence are subject to the same bail tests as those who commit the same offences while subject to the other kinds of orders listed in section 4AA(2)(c).

Division 6—Status of persons released on undertakings

Clause 26 provides that in determining if the exceptional circumstances test applies to a decision whether to grant bail to a person accused of a Schedule 2 offence, an adult subject to an adjourned undertaking is not considered to be serving a sentence or at large awaiting sentence.

Subclause (1) inserts a note after section 4AA(2)(v) of the Principal Act referring to new subsection (5), which provides further clarification as to the meaning of "serving a sentence".

Subclause (2) inserts new section 4AA(5). This new section provides that for the purposes of subsection (2)(c)(iib) and (v), an adult who is released on an undertaking under section 72 or 75 of the **Sentencing Act 1991** is not at large awaiting sentence for that offence and is not serving a sentence for that offence.

The Supreme Court has held that an accused person is considered to be "serving a sentence" while subjected to an adjourned undertaking. However, an adjourned undertaking is lower in the sentencing hierarchy than a fine, which does not attract the same reverse onus consequences under section 4AA(2)(c). This provision therefore excludes adjourned undertakings from the definition of ***serving a sentence*** for the purposes of section 4AA(2)(c)(iiib) and (v) only.

Division 7—Historical offences corresponding to Schedule 1 offences and Schedule 2 offences

- Clause 27 inserts new item 13 into Schedule 1 to the Principal Act to include in the Schedule any other offence that has the same necessary elements that constitute an offence referred to in any other item of that Schedule.
- Clause 28 inserts new item 32 into Schedule 2 to the Principal Act to include in the Schedule any other offence that has the same necessary elements that constitute an offence referred to in any other item of that Schedule.

Clauses 27 and 28 are intended to ensure that Schedules 1 and 2 apply to those charged with a historical offence that is equivalent to a relevant contemporary offence included in the Schedules to enable more consistent treatment of serious offences under the bail regime. Currently, only contemporary offences are listed in Schedules 1 and 2 of the Principal Act. Consequently, a historical offence that is the equivalent of a contemporary scheduled offence will not attract uplift consequences. Therefore, the effect of the current Schedules is to treat those charged with a relevant contemporary offence more harshly than those charged with a historical equivalent of the same offence.

Division 8—Technical amendments

- Clause 29 inserts several definitions into section 3 of the Principal Act. These definitions are inserted to support the operation of amendments to more clearly set out the different steps of a bail determination.

step 1—exceptional circumstances test is defined as set out in section 4A.

step 1—show compelling reason test is defined as set out in section 4B.

step 1 test is defined to mean the step 1—exceptional circumstances test or the step 1—show compelling reason test.

step 2—unacceptable risk test is defined as set out in section 4D.

Clause 30 substitutes section 3D in the Principal Act to replace the existing Flow Charts in that section with updated Flow Charts for bail determinations which reflect the amendments made to the Principal Act. The Flow Charts illustrate the key features of the decision making process. These Flow Charts are intended as a guide only.

One of Flow Chart 1, 2 or 3 will apply when determining which tests are to be applied in deciding whether to grant bail to a person. Flow Chart 1 applies if the person whose bail is being considered has a terrorism record, or if the court determines under section 8AA that there is a risk that the person will commit a terrorism or foreign incursion offence. If Flow Chart 1 does not apply, then Flow Chart 2 applies if the person is an adult or Flow Chart 3 applies if the person is a child.

Flow Charts 1, 2 and 3 indicate which of Flow Charts 4, 5 or 6 applies to the person based on their circumstances. Flow Chart 4 sets out the tests to be applied where the person is subject to the step 1—exceptional circumstances test and the step 2—unacceptable risk test. Flow Chart 5 sets out the tests to be applied where the person is subject to the step 1—show compelling reason test and the step 2—unacceptable risk test. Flow Chart 6 sets out the test to be applied where the person is subject to the step 2—unacceptable risk test.

Part 3—What bail decision makers must consider

Division 1—Considerations concerning Aboriginal people

Clause 31 inserts a definition of **Aboriginal bail support service** in section 3 of the Principal Act. The term is defined to include a bail support service that is provided by an entity that is managed by Aboriginal people or operates for the benefit of Aboriginal people. The definition is intended to capture Aboriginal community controlled organisations and Aboriginal community controlled health organisations.

Clause 32 inserts a note at the foot of section 3AAA(1)(i) of the Principal Act. The note directs a bail decision maker to new section 5AAA(4A) of the Principal Act in consideration of the availability of bail support services. New section 5AAA(4A) is introduced by clause 34 of the Bill and requires that if a bail decision maker is imposing a condition referred to in existing section 5AAA(4)(g), and the accused is an Aboriginal person, the bail decision maker must take into account that it is important for the bail support services that Aboriginal people attend and participate in to be Aboriginal bail support services where that is appropriate, and where such services are available.

Clause 33 substitutes section 3A in the Principal Act with a new section 3A. The provision provides an updated and non-exhaustive list of considerations that must be taken into account when making a bail determination in relation to an Aboriginal person. New section 3A still applies to both Aboriginal children and Aboriginal adults and applies to all determinations under the Principal Act. The revised provision provides more guidance for bail decision makers in considering issues arising due to the person's Aboriginality, by ensuring the experiences of Aboriginal persons are taken into account in any bail determination, by setting out factors that make an Aboriginal person particularly vulnerable in the criminal justice system.

New section 3A(1)(a) provides that a bail decision maker must take into account the historical and ongoing discriminatory systemic factors that have resulted in Aboriginal people being over-represented in the criminal justice system, including in the remand population. The intended effect of this new provision is to ensure bail decision makers actively turn their mind to the historical and contemporary context of Aboriginal people in the criminal justice system when making a bail determination related to an Aboriginal person.

New section 3A(1)(b) provides that a bail decision maker must take into account the risk of harm and trauma that being in custody poses to Aboriginal people. The historically high, and continuing, number of Aboriginal deaths in custody means the Aboriginal people are particularly vulnerable in custody. Time in custody may also further perpetuate social and economic exclusion and compound loss of culture, family and purpose.

New section 3A(1)(c) provides that a bail decision maker must take into account the importance of maintaining and supporting the development of the person's connection to culture, kinship, family, Elders, country and community. This new provision reflects the importance of cultural connection for Aboriginal people, including residing on country, and how maintaining cultural connections may support rehabilitation. Time in custody will disrupt this connection.

New section 3A(1)(d) provides that a bail decision maker must take into account any issues that arise in relation to the person's history, culture or circumstances. Bail decision makers are only expected to take into account this information where it is presented by the person or their legal representative, as questioning the person about these experiences may re-traumatise the person.

New section 3A(1)(d)(i) provides that, where relevant, a bail decision maker must take into account the impact of any experience of trauma and intergenerational trauma, including abuse, neglect, loss and family violence.

New section 3A(1)(d)(ii) provides that, where relevant, a bail decision maker must take into account any experience of out of home care, including foster care and residential care.

New section 3A(1)(d)(iii) provides that, where relevant, a bail decision maker must take into account any issues that arise because of any experiences of social or economic disadvantage, including homelessness and unstable housing. This may be a causal factor of the alleged offending or may be affected by remand.

New section 3A(1)(d)(iv) provides that, where relevant, a bail decision maker must take into account ill health that the person experiences, including mental illness.

New section 3A(1)(d)(v) provides that, where relevant, a bail decision maker must take into account any disability the person has including physical disability, intellectual disability and cognitive impairment. For example, hearing impairment or hearing loss may greatly impact a person in a custodial setting.

New section 3A(1)(d)(vi) provides that, where relevant, a bail decision maker must take into account any caring responsibilities the person has, including as the sole or primary parent of an Aboriginal child. Caring responsibilities may include, for example, caring for siblings, extended family and kinship relationships.

New section 3A(1)(e) provides that, where relevant, a bail decision maker must take into account any other relevant cultural issue or obligation. It replicates current section 3A(b) of the Principal Act and may include cultural obligations such as Sorry Business.

A new note is included under new section 3A(1) to clarify that if the Aboriginal person is also a child, the bail decision maker must also take into account the matters set out in new subsection 3B(1).

New section 3A(2) clarifies that the bail decision maker is to take account of an issue set out in new section 3A(1) by reference to the evidence and information that is reasonably available to the bail decision maker at the time, including information provided by—

- the Aboriginal person's family and community; and
- providers of Aboriginal bail support services.

New section 3A(2) is intended to make clear that bail decision makers are not required to undertake enquiries in order to satisfy section 3A requirements, unless a bail decision maker chooses to do so. Bail decision makers may rely on the evidence or information that is before them or available to them, such as information provided by the applicant's legal representative or a family or community member who attends the police station. What is considered "reasonably available" will require an objective assessment about what is practicable in the circumstances, including within the operational limitations of the bail decision maker. For example, information may be less available and there are likely to be fewer resources and less support available to police than a court, and less available to a court when considering an afterhours bail application or where a person is unrepresented compared to an application made during business hours and when the person is represented. Acquiring information should not unnecessarily delay the bail determination. The provision also enables consideration of

information from family, community and Aboriginal bail support services. This reflects the importance of Aboriginal people being involved in decisions made about other Aboriginal people and may support bail decision makers in applying the considerations in section 3A(1). The information must be reasonably available, such as the family or community member or support service being present or easily contactable.

New section 3A(3) provides that despite new section 3A(2), the bail decision maker is to take account of the issues set out in new section 3A(1)(a) to (c) whether or not any evidence or information is before the bail decision maker in respect of those issues. The issues set out in new section 3A(1)(a) to (c) are distinguished because they reflect commonly understood facts and significant issues as they pertain to Aboriginal people. While the issues set out in those provisions will be relevant for all decisions made under the Act with respect to an Aboriginal person, it does not suggest that a bail decision maker must give more weight to these considerations. New section 3A(1)(d) and (e) are to be considered where they are relevant to the Aboriginal person and if information and evidence is reasonably available, in accordance with new section 3A(2).

New section 3A(4) provides that the requirement to take an issue set out in new section 3A(1) into account applies regardless of—

- whether the person's connection to their Aboriginality and culture has been intermittent throughout their life; and
- whether the person has only recently connected to or discovered their culture or heritage; and
- when the person first discloses that they are an Aboriginal person.

New section 3A(4) acknowledges the different circumstances in which a person connects to their Aboriginality and culture and that there are valid reasons why a person may not initially disclose they are Aboriginal. It does not expand the definition of **Aboriginal person** under section 3 of the Principal Act but rather provides clarification to ensure the definition is not narrowly applied. It is not intended to negatively impact a person who chooses (for whatever reason) not to disclose their cultural background earlier. New section 3A can only be taken into

account where reasonable enquiries have been made or the person identifies as Aboriginal before a determination is made.

New section 3A(5) includes a new requirement that where bail is refused to an Aboriginal person, the bail decision maker must identify the matters they had regard to in taking into account new section 3A(1) and record those matters. This can either be by stating those matters orally and ensuring that an audio visual recording or audio recording is made of that statement or by recording those matters in writing in a form the bail decision maker considers appropriate. The flexibility in recording these matters is intended to ensure proceedings are not unreasonably delayed and to take account of different bail decision makers. It is intended that the requirement will be incorporated as part of the bail decision maker's usual practice. Where bail is refused to an Aboriginal child, the bail decision maker must only identify and record the relevant considerations relating to new section 3A.

New section 3A includes 2 new notes. The first note directs bail decision makers to section 19(2) of the **Charter of Human Rights and Responsibilities Act 2006** which provides that Aboriginal persons hold distinct cultural rights and must not be denied the various rights referred to in that provision. The right may be subject to reasonable limitations in accordance with section 7 of the **Charter of Human Rights and Responsibilities Act 2006**.

The second note differs from its predecessor by substituting the words "must have regard to" with "must comply with" section 15AB(1)(b) of the Crimes Act 1914 (Cth) to reflect the mandatory nature of the Commonwealth provision.

Clause 34 amends section 5AAA of the Principal Act.

Subclause (1) inserts a new note at the foot of existing section 5AAA(4)(g) of the Principal Act to provide that if the accused is an Aboriginal person, the bail decision maker is to see new section 5AAA(4A).

Subclause (2) new section 5AAA(4A) after section 5AAA(4) of the Principal Act. New section 5AAA(4A) requires that if a bail decision maker is imposing a condition referred to in existing section (4)(g), and the accused is an Aboriginal person, the bail decision maker must take into account that it is important for the bail support services that Aboriginal people attend and participate in to be Aboriginal bail support services where that is

appropriate, and where such services are available. The provision acknowledges that Aboriginal bail support services are limited and may not always be an option by reference to the words "where such services are available". The provision is not intended to preclude the grant of bail by the sole reason that an Aboriginal bail support service is not available or prevent an Aboriginal person from accessing bail support services that are not specifically for Aboriginal people. The intended effect of new section 5AAA(4A) is to act as another safeguard to ensure culturally appropriate responses are put in place for Aboriginal people.

A new note is included at the foot of new section 5AAA(4A) of the Principal Act. The note provides that in making a determination under the Principal Act in relation to an Aboriginal person, a bail decision maker must take into account the issues set out in new section 3A(1).

Division 2—Considerations concerning children

Clause 35 substitutes the non-exhaustive list of factors in current section 3B(1) of the Principal Act that a bail decision maker must take into account where making a determination under the Act in relation to a child. Amended section 3B is intended to provide more guidance to bail decision makers in considering any bail determination under the Principal Act regarding a child, including extending, granting, refusing or revoking bail and setting or varying bail conditions.

New section 3B(1)(a) provides that a bail decision maker must take into account the child's age, maturity and stage of development at the time of the alleged offence. It is a new consideration and is included in response to recommendation 58 of the Commission for Children and Young People's (CCYP) *Our Youth Our Way* report. The child's stage of development and maturity may be different to the child's age and requires separate consideration.

New section 3B(1)(b) provides that a bail decision maker must take into account the need to impose on the child the minimum intervention required in the circumstances, with the remand of the child being a last resort. The provision substantially replicates current section 3B(1)(a) of the Principal Act, with an amendment to give effect to the principle of remand as the last resort for children.

New section 3B(1)(c) provides that a bail decision maker must take into account the presumption at common law (also known as *doli incapax*) that a child who is 10 years of age or over but under 14 years of age cannot commit an offence. This is a new consideration. The presumption is rebuttable, but bail decision makers are not expected to make a determination in relation to whether the presumption is rebutted. Rather, in making decisions under the Principal Act, bail decision makers should be aware that, at common law, a child under 14 years of age cannot be held criminally responsible unless they knew that their actions were seriously wrong.

New section 3B(1)(d) provides that a bail decision maker must take into account the need to preserve and strengthen the child's relationships with the child's parents, guardian and carers, and other significant persons in the child's life. This largely replicates current section 3B(1)(b) of the Principal Act, but further recognises that there may be other relevant relationships in the child's life to be considered, including (for example) extended family, step-parents or siblings.

New section 3B(1)(e) provides that a bail decision maker must take into account the importance of supporting the child to live at home, or in safe, stable and secure living arrangements in the community. It is a new consideration and is inserted in response to recommendation 58 of the CCYP's *Our Youth Our Way* report.

New section 3B(1)(f) provides that a bail decision maker must take into account the importance of supporting a child to engage in education, training or work with minimal interruption or disturbance. It expands on current section 3B(1)(d) of the Principal Act, by capturing the importance of education, training or work that the child may not have commenced yet.

New section 3B(1)(g) provides that a bail decision maker must take into account the need to minimise the stigma to the child resulting from being remanded. The provision replicates current section 3B(1)(e) of the Principal Act.

New section 3B(1)(h) provides that a bail decision maker must take into account the fact that time in custody has been shown to pose criminogenic and other risks for children, including a risk that the child will become further involved in the criminal justice system, and a risk of harm. "Risk of harm" is intended to capture the potential for physical, psychological and any other harm to the child. It is a new consideration and is intended to ensure bail decision makers consider the fact that even a short time remanded in custody has been shown to have a negative impact on children and increase likelihood of reoffending.

New section 3B(1)(i) provides that a bail decision must take into account the need to ensure that the conditions of bail are no more onerous than is necessary and do not constitute unfair management of the child. It replicates current section 3B(1)(g) of the Principal Act.

New section 3B(1)(j) provides that a bail decision maker must take into account the fact some cohorts of children experience discrimination resulting in over-representation in the criminal justice system, including Aboriginal children, children involved in the child protection system, and children from culturally and linguistically diverse backgrounds. It is a new consideration intended to prompt bail decision makers to consider whether they may be inadvertently contributing to the overrepresentation of these cohorts of children in custody.

New section 3B(1)(k) provides that a bail decision maker must take into account whether, if the child were to be found guilty, it is likely the child would be sentenced to a term of imprisonment, and if so, the time the child would spend remanded if bail were refused would exceed that term of imprisonment. It provides further guidance to decision makers by expanding current section 3B(1)(k) of the Principal Act, which requires bail decision makers to only consider the likely sentence should the child be found guilty.

New section 3B(1)(l) provides that a bail decision maker must take into account any issues that may be relevant to a child's individual circumstances. It is a new consideration.

Bail decision makers are only expected to take into account this information where it is presented by the person or their legal representative, as questioning the person about these experiences may re-traumatise the person.

New section 3B(1)(l)(i) requires consideration of any ill health, including (for example) a mental illness.

New section 3B(1)(l)(ii) requires consideration of any disability, including physical disability, intellectual disability, cognitive impairment or developmental delay. These circumstances can have an impact on the child's ability to comply with conduct conditions.

New section 3B(1)(l)(iii) requires consideration of any experiences of abuse, trauma, neglect, loss, family violence or child protection involvement including removal from family or placement in out-of-home care. Bail decision makers should consider how any of these experiences may impact the child's behaviour.

New section 3B(1)(m) provides that the bail decision maker must take into account any other relevant factor or characteristic. The provision recognises that the list of matters in section 3B is not exhaustive.

New section 3B(1A) clarifies that the bail decision maker is to take account of an issue in new section 3B(1) by reference to the evidence and information that is reasonably available to them at the time. New section 3B(1A) is intended to make clear that bail decision makers are not required to undertake enquiries in order to satisfy section 3B requirements, unless a bail decision maker chooses to do so. Bail decision makers are to rely on what evidence or information is before them or available to them, such as information provided by the applicant's legal representative or family member or guardian.

What is considered "reasonably available" will require an objective assessment about what is practicable in the circumstances, including within the operational limitations of the bail decision maker. For example, information may be less available and there are likely to be fewer resources and less support available to police than a court, and less available to a court when considering an afterhours bail application or where a person is unrepresented compared to an application made during business hours and when the person is represented. Acquiring information should not unnecessarily delay the bail determination.

New section 3B(1B) provides that, despite new section 3B(1A), the bail decision maker is to take account of the issues set out in new section 3B(1)(b) to (j), whether or not any information or evidence is before the bail decision maker in respect of those issues. The issues set out in new section 3B(1)(b) to (j) are distinguished because they reflect commonly understood facts and significant issues relevant to all children. While the issues in those provisions will be relevant for all decisions made under the Act with respect to a child, it does not suggest that a bail decision maker must give more weight to these considerations. New section 3B(1)(a) and (k) to (m) are to be considered where they are relevant to the child and if information and evidence is reasonably available, in accordance with new section 3B(1A).

Division 3—Surrounding circumstances

- Clause 36 inserts a new section 3AAA(1)(aa) into the Principal Act, to add a new circumstance to the non-exhaustive list of "surrounding circumstances" set out in section 3AAA(1). This new circumstance has been inserted at the beginning of section 3AAA(1) as an indication of its importance.

The bail decision maker must consider whether, if the accused were found guilty of the offence with which the accused is charged, it is likely that the accused would be sentenced to a term of imprisonment. If so, the bail decision maker must consider whether the time the accused would spend remanded in custody if bail is refused would exceed that term of imprisonment. This is in addition to the circumstances provided in section 3AAA(1)(k) and (l), which require consideration of likely length of time on remand and likely sentence, as those provisions do not require consideration of whether the former would exceed the latter.

- Clause 37 inserts new section 3AAA(1)(e)(iiia) and (iiib) into the Principal Act, to add whether the offending was allegedly committed while on remand for another offence or while at large awaiting sentence for another offence as a new surrounding circumstance in section 3AAA(1).

Clause 38 substitutes existing section 3AAA(1)(h) of Principal Act with new section 3AAA(1)(h). New section 3AAA(1)(h) provides that any special vulnerability of the accused includes—

- being an Aboriginal person; or
- being a child; or
- experiencing any ill health (including mental illness); or
- having a disability (including physical disability, intellectual disability and cognitive impairment).

New section 3AAA(1)(h) reflects existing section 3AAA(1)(h) but is amended to specifically include physical disability in consideration of surrounding circumstances.

A new note is inserted at the foot of substituted section 3AAA(1)(h) of the Principal Act and provides the bail decision maker is required to take certain issues into account if the accused is an Aboriginal person, in accordance with new section 3A. Further, the bail decision maker is required to take certain issues into account if the accused is a child, in accordance with new section 3B. The bail decision maker is required to take all these issues into account if the accused is both an Aboriginal person and a child, in accordance with new sections 3A and 3B. The note reflects the importance of considering new sections 3A and 3B in making a determination in relation to an Aboriginal person or a child.

Part 4—Repeal of certain offences

Clause 39 repeals section 30A of the Principal Act. It is intended that an accused on bail, who contravenes a conduct condition imposed on the accused, without reasonable excuse, will no longer be punishable by an offence under this section.

Clause 40 repeals section 30B of the Principal Act. It is intended that an accused, who commits an indictable offence whilst on bail, will no longer be punishable by an offence under this section.

- Clause 41 repeals section 32A of the Principal Act. This section relates to the power of police or authorised officers to serve an infringement notice on an accused who is believed to have committed an offence against section 30A and specifies the infringement penalty applicable to an offence against section 30A. The repeal of section 30A by clause 39 means this section is redundant and can be removed.

Part 5—Clarifying and modernising amendments

Division 1—Sureties to be replaced by bail guarantees

Subdivision 1—Amendments to Principal Act

- Clause 42 inserts definitions of ***bail guarantee*** and ***bail guarantor*** in section 3 of the Principal Act.

Bail guarantee is defined as an undertaking, given by one or more persons, to pay a specified amount if there is—

- (a) failure to comply with a bail undertaking or an undertaking given under section 16B (as the case requires); or
- (b) a failure to comply with a condition of the grant of bail in respect of which the undertaking referred to in paragraph (a) was given.

Bail guarantor is defined as a person who gives a bail guarantee.

These new defined terms replace the term "surety", which is used in various contexts in the Principal Act and is used to describe each of these different concepts. The new definitions differentiate between the amount to be paid in accordance with the undertaking and the person or people who enter into an undertaking to ensure that an accused will appear in court.

- Clause 43 repeals section 5(3) of the Principal Act which required that any surety must also enter into an undertaking to pay the specific amount if the accused fails to comply with the undertaking entered into by them. A person is not "required" to give a bail guarantee by force of a statutory provision. Rather, a grant of bail may have a condition that requires that a bail guarantee be given. Section 5(3) therefore has no further work to do with the new definitions of ***bail guarantor*** and ***bail guarantee*** inserted by

clause 42, and the amendments to section 5 of the Principal Act in clause 91.

- Clause 44 substitutes the heading to section 5AAB of the Principal Act with **"Bail decision maker to have regard to means of accused or bail guarantor"** to replace a reference to sureties. Subclauses (2), (3) and (4) substitute "surety" with "bail guarantee" and "bail guarantor" in sections 5AAB(1), (3) and (4) as applicable.
- Clause 45 substitutes "surety" with "bail guarantee" and "bail guarantor" in section 9(1), (2), (2A), (3), (3A), (3B), (3D), (6), (7), (7A) and (8) of the Principal Act where applicable as per the new definition in section 3. This clause also inserts a heading of **"Bail guarantor"** to section 9 to reflect the change in terminology.
- Clause 46 substitutes "of any surety or sureties" with "specified in any bail guarantee" as one of the requirements that must be satisfied for a bail justice's certification of granting bail on a remand warrant, in section 10A(5A) of the Principal Act.
- Clause 47 substitutes "of any surety or sureties" with "specified in any bail guarantee" as part of the information that must be recorded by the court on the remand warrant, file or other papers of an accused granted bail in section 12(3A)(b) of the Principal Act.
- Clause 48 substitutes references to sureties with references to bail guarantors in relation to the process for extension of bail set out in section 16(1) and section 16(2) of the Principal Act.
- Clause 49 substitutes "surety" with "bail guarantor" in section 16A of the Principal Act which sets out the requirements for written notice of extension of bail.
- Clause 50 substitutes references to "surety or sureties" with "bail guarantees" or "bail guarantor" as applicable in section 17(2) of the Principal Act.
- Clause 51 substitutes references to "surety or sureties" with "bail guarantees" or "bail guarantor" as applicable in section 17A(3) of the Principal Act.
- Clause 52 substitutes references to "surety or sureties" with "bail guarantees" or "bail guarantor" as applicable in section 17B(3) of the Principal Act.

- Clause 53 substitutes "**sureties**" with "**bail guarantors**" in the heading "**Notice of application for variation to be given to sureties**", which is the heading to section 18AI of the Principal Act. The clause also substitutes references to "surety" and "sureties" with "bail guarantor" and "bail guarantees" as applicable in section 18AI(1) and (2) of the Principal Act.
- Clause 54 substitutes "**Surety**" with "**Bail guarantor**" in the heading "**Surety entitled to attend on application for variation**", which is the heading to section 18AJ of the Principal Act. The clause also substitutes references to "surety" and "sureties" with "bail guarantor" and "bail guarantees" in section 18AJ(1) and (2) of the Principal Act.
- Clause 55 substitutes references to "surety" and "sureties" with "bail guarantees" and "bail guarantor" in section 18A(2), (3), (5) and (9) of the Principal Act.
- Clause 56 substitutes references to "surety" and "sureties" with "bail guarantees" and "bail guarantor" as applicable in section 19(1), (2) and (3) of the Principal Act.
- Clause 57 inserts the heading "**Death of bail guarantor**" for section 20 of the Principal Act. This substitutes "**surety**" with "**bail guarantor**". The clause also substitutes "surety to bail" with "bail guarantor" and "another surety" with "another bail guarantor" in section 20(2).
- Clause 58 substitutes "**surety**" with "**bail guarantor**" in the heading "**Abolition of right of a surety to apprehend a principal**", which is the heading to section 21 of the Principal Act. The clause also substitutes "surety" for "bail guarantor" in section 21.
- Clause 59 inserts the heading "**Bail guarantor may apply for discharge**" for section 23 of the Principal Act. This substitutes "**Surety**" with "**Bail guarantor**". The clause also substitutes "surety" and "sureties" with "bail guarantor" and "bail guarantee" as applicable in section 23(1) and (4) of the Principal Act.
- Clause 60 substitutes "surety" with "bail guarantor", "bail guarantors" and "bail guarantees" as applicable in section 24(1) and section 24(3)(a).

- Clause 61 inserts the heading "**Indemnifying bail guarantor**" in section 31 of the Principal Act. This substitutes "**surety**" with "**bail guarantor**". The clause also substitutes "surety" with "bail guarantor" in section 31(2).
- Clause 62 substitutes "surety" with "bail guarantor" in section 32 of the Principal Act.
- Clause 63 substitutes "sureties" with "bail guarantors" in section 33(c) of the Principal Act.

Subdivision 2—Consequential amendments to other Acts

- Clause 64 amends the **Crown Proceedings Act 1958** to insert the definition of ***bail guarantor*** in section 2A of that Act, having the same meaning as in the Principal Act. References to "surety" or "sureties" in the **Crown Proceedings Act 1958** are substituted by "bail guarantor" and "bail guarantors" as applicable.
- Clause 65 amends the **Children, Youth and Families Act 2005** to substitute "surety" in section 430ZC(1) with "bail guarantor" within the meaning of the Principal Act).
- Clause 66 amends the **Coroners Act 2008** to substitute "sureties" with "bail guarantors". After section 59(6), it inserts the definition of ***bail guarantor*** as having the same meaning as in the Principal Act.
- Clause 67 amends the **Criminal Procedure Act 2009** to substitute "surety" or "sureties" with "bail guarantor". After section 121(3), it inserts the definition of ***bail guarantor*** as having the same meaning as in the Principal Act.
- Clause 68 amends the **Evidence Act 2008** to substitute "sureties" with "bail guarantors". After section 194(7), it inserts the definition of ***bail guarantor*** as having the same meaning as in the Principal Act.
- Clause 69 amends the **Fisheries Act 1995** to substitute references to "surety" with "bail guarantor" and "bail guarantors". After section 101E(2), it inserts the definition of ***bail guarantor*** as having the same meaning as in the Principal Act.

Clause 70 amends the **Magistrates' Court Act 1989** to insert the definition of ***bail guarantor*** in section 3 as having the same meaning as in the Principal Act. It also substitutes reference to "sureties" with "bail guarantors" in sections 62(2) and 77(2) of the **Magistrates' Court Act 1989**.

Division 2—Gender neutral language

- Clause 71 substitutes the pronoun "his or her" with "the accused's" in the definition of ***bail support service*** in section 3 of the Principal Act. The Principal Act uses gender-specific language in numerous instances and the Bill seeks to amend this. In certain instances, the Bill employs "they, them or their", however in some provisions, including where multiple people are referred to, the Bill refers to a particular person to whom the provision applies to. This reasoning is applicable to the following clauses in this Division.
- Clause 72 substitutes the pronoun "he" with "the prosecutor" in section 7(1) of the Principal Act and the pronoun "him" with "the person" in section 7(2).
- Clause 73 substitutes the pronouns "he", "him", "his or her" and "himself", with "the accused" in section 8(1) of the Principal Act. "Himself" in section 8(1)(c)(iii) is omitted.
- Clause 74 substitutes the pronouns "he", "his" and "him" which refers to "surety" with "bail guarantor" in section 9(2), (3)(b), (5)(a) and (6) of the Principal Act.
- Clause 75 substitutes the pronouns "he", "him" and "his" with "the person" and "the police officer" as applicable in section 11(1), (2), (3) and (4) of the Principal Act.
- Clause 76 substitutes the pronouns "himself", "he", "his" and "him" with "themselves" and "the accused" as applicable in section 16(1) and (3) of the Principal Act.
- Clause 77 substitutes the pronouns "his" and "he" for "the accused" and omits the pronouns where applicable in section 17(1) and (2) of the Principal Act.

- Clause 78 substitutes the pronouns "his or her" with "the" in section 18AC(3)(b) of the Principal Act.
- Clause 79 substitutes the pronouns "his or her" with "the" in section 18AE(2)(b) of the Principal Act.
- Clause 80 substitutes the pronouns "he", "his" and "himself", with the relevant person, either "the Director", "legal practitioner" or "the respondent" in section 18A(2), (5), (7), (8), (9) and (11) of the Principal Act as applicable.
- Clause 81 substitutes the pronouns "he", "him" and "his" with "the accused" in section 19(1) of the Principal Act and "him" for "the person" in section 19(2).
- Clause 82 substitutes the pronoun "his" with "the bail guarantor's" in section 20 of the Principal Act.
- Clause 83 substitutes the pronouns "him or her" with "the principal" in section 21 of the Principal Act.
- Clause 84 substitutes the pronouns "his", "himself" and "him" with "the accused" and omits the pronouns where applicable in section 23(1), (2), (3) and (4) of the Principal Act.
- Clause 85 substitutes the pronouns "his or her" with "the" in section 24 of the Principal Act.
- Clause 86 substitutes the pronouns "he", "his" and "him" with "the person" in section 26(1) and (2) of the Principal Act.
- Clause 87 substitutes the pronouns "him", "his" and "himself" with "the person" and omits the pronouns where applicable in section 30(1) and (2)(b) of the Principal Act.
- Clause 88 substitutes the pronoun "he" with "the person" in section 31(2) of the Principal Act.
- Clause 89 substitutes the pronoun "his" with "the person" in section 32 of the Principal Act.

Division 3—References to undertakings

- Clause 90 inserts a definition of ***bail undertaking*** into section 3 of the Principal Act and repeals the existing definition of ***undertaking***.

Bail undertaking is defined as an undertaking given under section 5(1). This amendment updates terminology throughout the Principal Act for improved clarity and consistency; for example, so that an undertaking in section 16B is not referred to using the same language as is used for a bail undertaking. The subsequent clauses in this Division reflect the updated terminology relating to bail undertakings, including providing that such undertakings are "given" rather than "entered into".

- Clause 91 substitutes "give an undertaking in writing" for "enter into a written undertaking" in section 5(1) and (1A) of the Principal Act.

Subclause (3) replaces current section 5(2) of the Principal Act. The new section 5(2) has the same practical effect as the current section, but uses updated terminology and simpler, more direct language.

- Clause 92 substitutes "bail undertaking" for "conditions of bail" in section 5AAA(1)(d) of the Principal Act. This amendment reflects that the requirement to surrender arises under the bail undertaking itself and not under the conditions of bail.

- Clause 93 substitutes "bail undertaking" for "undertaking of bail" in section 9(3)(c), (3B)(a) and (3D)(a) of the Principal Act.

- Clause 94 substitutes "give a bail undertaking" for "enter into an undertaking" in section 10(5B) of the Principal Act.

- Clause 95 substitutes "Every bail undertaking" for "Every undertaking" in section 16(1) of the Principal Act and "a bail undertaking" replaces "an undertaking".

Subclause (2) substitutes "bail undertaking" for "undertaking of bail" in section 16(2) of the Principal Act. In the same section, "giving a fresh bail undertaking" replaces "entering into a fresh undertaking".

Subclause (3) substitutes "bail undertaking" for "undertaking" in section 16(3) of the Principal Act.

Subclause (4) substitutes "a bail undertaking" for "an undertaking" in section 16(4) of the Principal Act.

Clause 96 substitutes "**give bail undertaking**" for "**enter into undertaking**" in the heading to section 16B of the Principal Act. Section 16B is further amended to replace "enter into an undertaking" with "give a bail undertaking", and to replace "enters into" with "gives".

Clause 97 substitutes "**bail undertaking**" for "**undertaking**" in the heading to section 17A of the Principal Act.

Subclause (2) amends section 17A(1) to replace "enter into a written undertaking under section 5(1)" with "give a bail undertaking", and to replace "to enter into a written undertaking" with "to give a bail undertaking". In paragraph (d)(i), "entered into" is replaced by "given".

Subclause (3) amends section 17A(2) to replace "an undertaking is entered into" with "a bail undertaking is given", and to replace "the undertaking" with "the bail undertaking".

Subclause (4) amends section 17A(3) to replace "an undertaking entered into" with "a bail undertaking given", and to replace "the undertaking" with "the bail undertaking".

Subclause (5) amends section 17A(4) to replace "an undertaking is entered into" with "a bail undertaking is given".

Clause 98 substitutes "give" for "enter into" (where twice occurring) in section 17B(1) of the Principal Act. In section 17B(1)(c)(i), "given" replaces "entered into". In section 17B(2), (3) and (4), "given" replaces "entered into".

Clause 99 substitutes "bail undertaking" for "conditions of bail" in section 18AC(3)(b) of the Principal Act. This amendment reflects that the requirement to surrender arises under the bail undertaking itself and not under the conditions of bail.

Clause 100 substitutes "bail undertaking" for "conditions of bail" in section 18AE(2)(b) of the Principal Act. This amendment reflects that the requirement to surrender arises under the bail undertaking itself and not under the conditions of bail.

Clause 101 substitutes "bail undertaking" for "undertaking of bail" in section 19(1) of the Principal Act.

Clause 102 substitutes "under the bail undertaking" for "under the conditions of the bail" in section 23(1) of the Principal Act. This amendment reflects that the requirement to surrender arises under the bail undertaking itself and not under the conditions of bail. In the same section, "the bail undertaking" replaces "the undertaking".

Subclause (2) substitutes "a bail undertaking" for "an undertaking of bail".

Clause 103 amends the language used in section 24 of the Principal Act.

Subclause (1) updates section 24(1)(a) to substitute "breach the bail undertaking or any condition of bail" for "break the condition for his attendance or any other condition on which he was admitted to bail". It also substitutes "is breaching or has breached any such condition" for "is breaking or has broken any such other condition;" in the same paragraph. It also amends paragraph (b) to replace "break the condition for his attendance" with "breach the bail undertaking".

Subclause (2) substitutes "the bail undertaking" for "a condition of his or her bail" in section 24(2)(b).

Subclause (3) inserts "who is on bail" after "Where a person" in section 24(3). In the same provision, paragraph (a) is amended to replace "has broken or is likely to break a condition of the undertaking on which the person was admitted to bail" with "has breached or is likely to breach the bail undertaking or a condition of bail". Paragraph (a) is further amended to replace "original undertaking or a new undertaking" with "original bail undertaking or on a new bail undertaking", and in subparagraph (a)(i), "bail undertaking" replaces "conditions of the bail". "Original undertaking" is replaced with "original bail undertaking" in paragraph (b).

Clause 104 substitutes "given a bail undertaking" for "entered into an undertaking conditioned for his attendance before a court" in section 26(2) of the Principal Act.

Clause 105 substitutes "bail" for "an undertaking" in section 27(1) of the Principal Act. In the same section, "the bail undertaking (and the required bail guarantees, if any) need not be given" replaces "the undertaking need not be entered into", and "may be entered into by the parties" is replaced by "may be given". Also in section 27(1), "the undertaking had been entered into" is replaced by "the bail undertaking and the bail guarantees, if any, had been given".

Subclause (2) substitutes "gives" for "enters into" in section 27(1A).

Clause 106 substitutes "bail undertaking" for "undertaking of bail" in section 30(1) of the Principal Act.

Subclause (2) replaces "an undertaking of bail entered into" with "a bail undertaking given" in sections 30(2)(a) and (b). Paragraph (b) is further amended to substitute "the bail undertaking" for "the undertaking of bail".

Clause 107 substitutes "bail undertaking" for "undertaking" in section 32 of the Principal Act.

Division 4—Provisions redrafted to modernise language

Clause 108 substitutes section 28 of the Principal Act to provide that a bail decision maker may allow the accused to give a single bail undertaking in respect of 2 or more charges. This substitution clarifies and modernises the drafting of the provision. The reference to "sureties" is not replaced with a reference to "bail guarantors", because a bail guarantor is not entering into the bail undertaking itself.

Clause 109 substitutes section 31(1) of the Principal Act for section 31(1), (1A) and (1B) to clearly provide for 3 separate offences in relation to indemnification of a bail guarantor. Previously, these 3 offences were set out together in section 31(1). The substitution also replaces references to a "surety" with "bail guarantor". This amendment does not change the elements of the offences, and the penalty (of 15 penalty units or imprisonment for 3 months) is unchanged.

Subclause (2) inserts a reference to new section 31(1B) in section 31(2), to clarify that an offence against that subsection is committed regardless of the timing of the agreement and regardless of whether the agreement contemplates compensation in money or money's worth. No reference to new section 31(1A) is inserted, because that offence does not involve an agreement.

Division 5—Other amendments

Clause 110 amends outdated references to the Department of Justice and Community Safety and Department of Human Services in sections 3AAC(2)(e), 5A(1)(c) and 5A(3) of the Principal Act.

Clause 111 amends section 3 to replace "Aborigine" with "Aboriginal" in the definition of **Aboriginal person**. This change reflects that "Aborigine" is no longer accepted as the appropriate term and may be offensive. "Aboriginal" is preferred.

Clause 112 substitutes "the accused is not to be admitted to bail" for "bail is not to be entered" in section 5A(1)(d)(i). This change updates terminology and improves clarity and consistency.

Clause 113 amends section 8 of the Principal Act.

Subclause (1) inserts new paragraph (aa) into section 8(1) of the Principal Act to clarify that the bail decision maker is not bound by the rules of evidence.

Subclause (2) substitutes "subsection (1)(a)" with "subsection (1)(aa) or (a)" in section 8(2) in the Principal Act. Section 4(1) of the **Evidence Act 2008** applies that Act to all proceedings (including the rules of evidence) in a Victorian court, including those that relate to bail. However, section 8 of that Act provides that it does not affect the operation of the provisions of any other Act. Section 8(1) of the Principal Act therefore overrides the **Evidence Act 2008** to the extent that (for example) new subsection (1)(aa) and existing subsection (1)(a) of the Principal Act are inconsistent with the rules of evidence. However, the addition of new subsection (1)(aa) is intended to clarify rather than change the existing law regarding the application of the rules of evidence to bail proceedings. Accordingly, subclause (2) adds it to the list of provisions that section 8(2) specifically identifies as not overriding Part 3.10 of the **Evidence Act 2008**. That Part relates to the various categories of privilege that may prevent evidence being adduced, such as client legal privilege.

Section 8(2) of the Principal Act is intended to make clear that these categories of privilege may still prevent evidence being adduced in proceedings that relate to bail.

Clause 114 inserts new section 12(3AA) after section 12(3) of the Principal Act and provides that the court may allow the person to go at large if—

- the court considers it appropriate to do so; and
- the court is not required to refuse bail.

Clause 115 inserts new paragraph (aa) in section 18AA(1) of the Principal Act to provide that a new exception to the rule that a court must not hear an application for bail under section 18 unless certain exceptions apply. The new exception is that the application is the first or second instance of the applicant applying to a court for bail (whether under section 18 or otherwise) since being taken into custody.

The purpose of this amendment is to provide that an applicant for bail will not have to satisfy the court of "new facts and circumstances" (as provided for in section 18AA(1)(a)) when making an application for bail that is the second application following refusal or revocation of bail. This means that all accused people will be entitled to 2 bail applications before a court following arrest, both of which can be legally represented.

The new provision is intended to encourage represented bail applications at the earliest opportunity.

The existing "new facts or circumstances" requirement at section 18AA(1)(a) is important for preventing repeated unmeritorious applications for bail. Under section 18AA(1)(b) the court could also hear a further application for bail if the applicant was not represented by a legal practitioner when bail was previously refused or revoked. Section 18AA(1)(c) also makes clear that the court could hear a further application for bail if the order refusing or revoking bail was made by a bail justice. These provisions are retained.

Clause 116 inserts "the" after "Where" in section 26(1) of the Principal Act. This change corrects an error in the provision.

Part 6—Consequential amendments and transitional provisions

Division 1—Consequential amendments

- Clause 117 substitutes the note at the foot of section 346 of the **Children, Youth and Families Act 2005** to include a reference to new section 4AAB, which is inserted by clause 18. The new note also provides that in addition, section 3A of the Principal Act (determinations in relation to an Aboriginal person) applies if the child is an Aboriginal person.
- Clause 118 makes a consequential amendment to section 98(1)(d) of the **Fisheries Act 1995**. That section defines *associated offence* for the purposes of that Act to include offences against section 30(1), 30A(1) and 30B of the Principal Act. This is amended to refer only to an offence against section 30(1) of the Principal Act, due to the repeal of sections 30A and 30B of that Act.

Division 2—Transitional amendments

- Clause 119 inserts transitional provisions at new subsections (22) and (23) in section 34 of the Principal Act.

New section 34(22) provides that an amendment made to the Principal Act by the Bill applies to an application made, or an appeal commenced, under the Principal Act on or after commencement of that provision, regardless of when the offence is alleged to have been committed.

New section 34(23) makes transitional provision for the replacement of references to "surety" or "sureties" in the Principal Act by Division 1 of Part 5 of the Bill. Each person who was a surety prior to commencement of that Act is taken to be a bail guarantor, the undertaking constituting the surety is taken to be a bail guarantee, and the amount of the surety is taken to be the amount of the bail guarantee. Unless the contrary intention appears, a reference however described, to a surety in relation to bail in any other Act, any subordinate instrument or any other document is taken, so far as the document relates to any period after commencement of that Act, to be a reference to a bail guarantor, a bail guarantee or the amount of a bail guarantee, whichever the context requires.

Part 7—Repeal of this Act

Clause 120 provides that this Act is repealed on 25 March 2025.

The note at the foot of clause 120 clarifies that the repeal of this Act does not affect the continuing operation of the amendments made by it and refers to section 15(1) of the **Interpretation of Legislation Act 1984**.